

## Dara Singh v. State of U.P.

Allahabad High Court · Division Bench · 9 February 2016 · WRIT - C No. 44325 of 2013 · **Writ dismissed; relegated to Electricity Act 2003 and Supply Code 2005.**

### HEADNOTE

Writ attacking a 2012 electricity demand and recovery under s.3 of the U.P. State Government Electricity Dues Act, 1958, without impugning the assessment, dismissed. The consumer was left to remedies under the Electricity Act, 2003 and Electricity Supply Code, 2005.

### FACTUAL SUMMARY

Dara Singh alleged that an electricity connection sanctioned in 1998 was never energised, yet in 2012 the Executive Engineer, Vidyut Vitran Khand, Chandpur, Paschimanchal Vidyut Vitran Nigam Limited, Bijnor, issued a demand notice dated 7 August 2012 and a recovery certificate. Coercive steps were stayed at admission. At final hearing the Division Bench noted that recovery under section 3 of the U.P. State Government Electricity Dues Act, 1958 was challenged without attacking the assessment, and that recovery had likely already been effected.

### HOLDING-UNITS

#### INTERPLAY · EA2003

assessment-recovery-writ

#### HOLDING

A writ challenging recovery under section 3 of the U.P. State Government Electricity Dues Act, 1958, without challenging the assessment order, is not maintainable; the consumer must pursue remedies under the Electricity Act, 2003 and Electricity Supply Code, 2005 as applicable. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE 1998 CONNECTION WAS ENERGISED AND WHETHER THE DEMAND DATED 7.8.2012 WAS VALID

Writ dismissed without examining the demand; petitioner relegated to statutory remedies. ¶ 1